

25NNCV05448 25NNCV05448

County: los-angeles
Division: Civil Law and Motion
Department: 3
Hearing date: 2026-09-23
Motion: MOTION TO COMPEL ARBITRATION
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Case Number: 25NNCV05448 Hearing Date: September 23, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

AARON FLOWERS,

Plaintiff(s),

vs.

LYFT,
INC., et al.,

Defendant(s).

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CASE NO.: 25NNCV05448

[TENTATIVE]

ORDER RE: MOTION TO COMPEL ARBITRATION

Dept.

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8:30

a.m.

September

23, 2026

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I.

INTRODUCTION

On August 5, 2025, plaintiff Aaron

Flowers ("Plaintiff") filed this action against defendant Lyft, Inc.

("Defendant") and Michael Andrew Fernandez ("Fernandez"). Plaintiff alleges

that Fernandez was operating a vehicle for Lyft when Fernandez's vehicle

collided with Plaintiff's vehicle, causing severe harm and other personal

injuries. (Compl., ¶ 26.) The accident occurred on October 2, 2023, near the

intersection of Orange Grove Blvd. and Madeline Dr. in Pasadena, CA. (Compl., ¶

26.)

On April 29, 2026, Defendant filed this motion to compel arbitration. Plaintiff filed an opposition brief on September 10, 2026. Defendant filed a reply brief on September 16, 2026.

II.

LEGAL

STANDARD

“The burden of persuasion is always on the moving party to prove the existence of an arbitration agreement with the opposing party by a preponderance of the evidence.” (Gamboa v. Northeast Community Clinic (2021) 72 Cal.App.5th 158, 164.) The moving party “can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party's] signature.” (Bannister v. Marinidence Opco, LLC (2021) 64 Cal.App.5th 541.) The moving party can also meet its burden by setting forth the agreement's provisions in the motion. (Condee v. Longwood Management Corp. (2001) 88 Cal.App.4th 215, 219; see also Cal. Rules of Court, rule 3.1330 [“The provisions must be stated verbatim or a copy must be physically or electronically attached to the petition and incorporated by reference.”].) For this step, “it is not necessary to follow the normal procedures of document authentication.” (Condee, at p. 218; Iyere v. Wise Auto Group (2023) 87 Cal.App.5th 747, 755, review denied (Apr. 26, 2023).)

If the moving party meets its initial prima facie burden and the opposing party disputes the agreement, then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement. (Condee, supra, 88 Cal.App.4th at p. 219.) If the opposing party meets its burden of producing evidence, then in the third step, the moving party must establish with admissible evidence a valid arbitration agreement between the parties. (Iyere, supra, 87 Cal.App.5th at p. 755.) The burden of proving the agreement by a preponderance of the evidence remains with the moving party. (Ibid.)

III.

DISCUSSION

Defendant contends that Plaintiff must be compelled to arbitrate his claims because he signed an arbitration agreement when he created a Lyft user account on June 27, 2013, and agreed to the Terms

of Service ("Terms") on October 4, 2016. Defendant points out that Plaintiff affirmatively accepted Defendant's Terms through the Lyft App on eight separate occasions before and after the alleged accident, from October 4, 2016, to January 3, 2025. Defendant also contends that Plaintiff was logged into the Lyft Platform and was using the platform to provide Rideshare Services at the time of the incident.

The Terms include an arbitration provision stating that "ALL DISPUTES AND CLAIMS" between Plaintiff and Defendant "SHALL BE EXCLUSIVELY RESOLVED BY BINDING ARBITRATION", including claims arising out of the "Lyft Platform," "Rideshare Services," and "all other federal and state statutory and common law claims." The Terms also include a delegation clause which states that "All disputes concerning the arbitrability of a Claim (including disputes about the scope, applicability, enforceability, revocability or validity of the Arbitration Agreement) shall be decided by the arbitrator," except in very limited circumstances that do not apply here. (COE, Ex. 7 at pp. 2, 27-28, §§ 17(a), (g), emphasis added.)

Plaintiff argues that the arbitration agreement is unconscionable and cannot be enforced. However, since the arbitration agreement has a delegation clause, Plaintiff's claims of unconscionability must be specific to the delegation clause; questions regarding the enforceability of the agreement are reserved for the arbitrator. (*Tiri v. Lucky Chances, Inc.* (2014) 226 Cal.App.4th 231, 244 [emphasis in original]; accord, *Aanderud v. Superior Court* (2017) 13 Cal.App.5th 880, 895.) Since Plaintiff's opposition brief only addresses whether the entire agreement as a whole is unconscionable, Plaintiff fails to show that the delegation clause in particular is unconscionable. Moreover, since the arbitration agreement is governed by the FAA, Plaintiff's invocation of the third-party litigation exception codified at Code of Civil Procedure section 1281.2(c) is inapplicable.

IV.

CONCLUSION

Accordingly, the motion to compel arbitration is GRANTED. The Court stays the action and sets a status conference for _____ at 8:30 a.m. in Department 3 of the Alhambra Courthouse.

Dated
this 23rd

day of September 2026

William A.
Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at ALHDEPT3@lacourt.org indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.